

Andhra Pradesh Crop Cultivator Rights Rules, 2019

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State of Andhra Pradesh - Act

Andhra Pradesh Crop Cultivator Rights Rules, 2019

ANDHRA PRADESH

India

Andhra Pradesh Crop Cultivator Rights Rules, 2019

Rule ANDHRA-PRADESH-CROP-CULTIVATOR-RIGHTS-RULES-2019 of 2019

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Andhra Pradesh Crop Cultivator Rights Rules, 2019

Published vide Notification No. G.O. Ms. No.410, Revenue (EA & AR), dated 23.09.2019

Last Updated 19th November, 2019

No. G.O. Ms. No.410, Revenue (EA & AR). - In exercise of the powers conferred by sub-section (1) of Section 19 of the Andhra Pradesh Crop Cultivator Rights Act, 2019 (Andhra Pradesh Act No. 30 of 2019), the Governor of Andhra Pradesh hereby makes the following rules, namely: -

CHAPTER -1 Preliminary

1.

Short title, extent and commencement.

(1)

These Rules may be called the Andhra Pradesh Crop Cultivator Rights Rules, 2019.

- (2)
They shall extend to the whole of the State of Andhra Pradesh.
- (3)
They shall come into force on the date of their publication in the Andhra Pradesh State Gazette.

2.
Definitions.

- In these rules, unless the context otherwise requires;-

- (a)
"Act" means the Andhra Pradesh Crop Cultivator Rights Act, 2019 (Andhra Pradesh Act No. 30 of 2019);
- (b)
"Form" means a form appended to these Rules;
- (c)
"Village Secretariat" means village level administrative office;
- (d)
"Section" means a section of the Act;
- (e)
"Banker" means State or Central Government or Agricultural Co-operative society or Scheduled Bank or any other Financial Institution owned controlled or managed by the State or Central Government;
- (f)
"Village Volunteer" means as defined by the Panchayat Raj Department from time to time.

CHAPTER - II Execution of Agreement

3.
Crop Cultivator Rights Card (CCRC).

- (1)
It is an agreement executed between the Land Owner and the Cultivator for a period of eleven months countersigned by the Village Revenue Officer in the Village Secretariat with the conditions specified under Section 3(3) of the Act in the Form-I appended to these rules.
- (2)
Either the Land Owner or the Cultivator who intended to make an agreement for crop cultivation for the agreed land for a particular crop year may get unfilled preprinted Crop Cultivator Rights Card (CCRC) from the respective Village Secretariat at any time during the crop year.
- (3)
The Village Revenue Officer or Village Volunteer concerned shall facilitate bringing together the Land Owner and Cultivator for the signature of CCRC.
- (4)
The filled CCRC with the signatures of the Land Owner and the Cultivator shall be handed over to the Village Secretariat by the concerned Village Revenue Officer or Village Volunteer. The same may also be handed over to Village Secretariat by either Land Owner or the Cultivator.
- (5)
The Village Revenue Officer in the Village Secretariat concerned shall countersign the CCRC after completion of verification with respect to the village revenue records.
- (6)
The Village Secretariat shall hand over the signed CCRC to both Land Owner and Cultivator within 3 days from the date of receipt of filled CCRC.
- (7)
Agreement in the form of CCRC within the family members shall not be allowed.
- (8)
The agreements in the form of CCRC shall be for maximum period of 11 months.
- (9)
The land owner may authorize any person in writing on his behalf to sign the agreement with the cultivator.
- (10)

Land owner can give his consent through Video link to be recorded by the village secretariat as evidence of agreement. In such case signature in CCRC will not be required. The Video footage shall be preserved by the village Secretariat for evidence. Owner can communicate his consent through other means of Electronic Media.

(11)

The Owner of land if residing far off can also sign CCRC and send the scanned copy to village secretariat through Electronic media in token of his consent / agreement.

(12)

In case of such alternative modes of consent, the authentication should be done by Village Secretariat and shall be accepted by Bankers and other concerned authorities as enough proof of consent of the land owner.

(13)

While the CCRC should be available all the year round in the Village Secretariat for land owners and the Cultivators, the Bankers/ Financial Institutions should also follow the loan sanction schedule (timelines) issued by the Government Bankers/ Financial Institutions shall not refuse sanction of Crop Loan beyond prescribed timeline when approached by the Cultivator.

4.

Register of Crop Cultivator Rights Cards.

(1)

On and from the date of commencement of the Act, a register containing the details of all the agreements executed in the form of Crop Cultivator Rights Cards received shall be maintained by the respective functional authority in Village Secretariat in Form-II for every crop year.

(2)

A copy of the register in Form-II shall be submitted to the concerned Tahsildar's Office.

(1)

Copy of the register shall be sent to all the concerned public financial institutions operating within the Mandal and agricultural officer of the Mandal.

5.

Benefits extended to the Cultivator.

(1)

The Cultivator shall be entitled to obtain crop loan on the land under agreement from the State or Central Government or Agricultural Co-operative society or Scheduled Bank or any other Financial Institution owned controlled or managed by the State or Central Government.

(2)

The Cultivator shall also be entitled to obtain Crop Insurance, Input Subsidy, Crop damages or any other benefits or facilities provided to the farmers by the Government.

(3)

SC., ST., BC and Minority Cultivators will also be entitled to "Rythu Bharosa" Scheme in addition to Land Owners as per guidelines of the scheme.

6.

Register of benefits extended.

- All benefits provided to the Cultivators under Rule 5 shall be recorded in a register in Form-III to be maintained in the concerned Village Secretariat.

7.

Applicability in Scheduled Areas.

- These Rules shall apply to the Cultivators who belong to local Scheduled Tribes only notified within the Scheduled Areas of the State of Andhra Pradesh.

8.

Appeals.

(1)

Any person aggrieved by the decision of the Village Secretariat either granting or refusing to grant of CCRS may file an appeal to the Tahsildar of the concerned Mandal in Form-IV (A) or (B) as applicable and the Tahsildar shall dispose the same by summary enquiry within 7 (Seven) days by giving opportunity to both the parties.

(2)

Any person aggrieved by the decision of the Tahsildar may file a further Appeal before the Sub Collector or Revenue Divisional Officer of the concerned Revenue Division in writing within a period of 7 (Seven) days from the date of receipt of the order of the Tahsildar and the same shall be disposed by summary enquiry within 7 (Seven) days by giving opportunity to both the parties.

(3)

Any person aggrieved by the decision of the Sub-Collector or RDO, may file a revision before the Joint Collector of the concerned District in writing within a period of 30days from the date of receipt of such order and the same shall be disposed by summary enquiry within 7 (Seven) days by giving opportunity to both the parties.

Chapter III

Miscellaneous

9.

Removal of Difficulties.

- If any difficulty arises as to the interpretation of any provisions of these Rules or in the implementation of such provisions, the Chief Commissioner of Land Administration shall have powers to issue clarifications or directions for the purpose of removal of the difficulties in implementation of the Act and rules made there under.

Form-I

[Under Section 3(2) of the Act No. 30 of 2019 read with Rule 3]

Crop Cultivator Rights Card (CCRC)

(Loan eligibility to the Cultivator & Lawful Assurance to the Land Owner)

Sl. No. in the Register:

Period of the CCRC: Maximum of 11 months in a Crop year only

This Agreement is made and executed on this day _____ of _____ at _____ (place) under the provisions of the Andhra Pradesh Crop Cultivator Rights Act, 2019 between the following for the scheduled land:

1. Sri/Smt _____ S/o,D/o,W/o _____ aged about _____, Occupation _____, R/o _____ Aadhar No: _____ (Hereinafter called the Land Owner)

and

2. Sri/Smt _____ S/o,D/o,W/o _____, aged about _____, Occupation _____, R/o _____, Aadhar No: _____, belongs to SC/ST/BC/Minority category. (Hereinafter called the Cultivator)

Schedule

District:

Mandal:

Village:

Sl.No

1B-Khata Number of Land Owner

Sy. No/s

Total Extent of the Land Owner

Extent of the Land made agreement for Cultivation

Classification of the land

Signature of the Land Owner & Mobile No.

Signature of the Cultivator & Mobile No.

Signature of the VRO

Note. - Please strike off words which are not applicable.

Note. - 1. This CCRC issued under the Act, shall not be used as evidence in support of right over the land under agreement against the Land Owner before any Court or Legal Authority.

2. This CCRC shall not provide any right over the land under agreement except on the crop cultivated by the cultivator.

All rights over the land under agreement shall vest with the Land Owner only.

3. Under Section 5 of the Act, the Cultivator shall be entitled to obtain crop loan on the land under agreement from the State or Central Government or Agricultural Co-operative society or Scheduled Bank or any other Financial Institution owned controlled or managed by the State or Central Government and also to obtain Crop Insurance, Input Subsidy, Crop damages, or any other benefits or facilities provided to the farmers by the Government.
4. SC., ST., BC and Minority Cultivators will also be entitled to "Rythu Bharosa" scheme in addition to Land Owners.
5. The Revenue Official shall not transfer or create any right to the Cultivator over the land under agreement by using CCRC.
6. The scheduled land shall not be attached by the Bankers/Financial Institutions for recovery of any dues of the Cultivator. The recovery shall be made from the proceeds of the crop only.
7. The Village Secretariat and the Village Volunteers shall co-ordinate the Land Owner and the Cultivator.
8. This CCRC shall be prepared in duplicate; one copy to the Land Owner and one for the Cultivator.

Form-II

[Under Section 8(b) of the Act read with Rule 4 (1)]

Register of Crop Cultivator Rights Cards

Sl. No.

Date of receipt of CCRCs

Name of the Cultivator and Name of the

Father/Husband

Address of the Cultivator

Religion

Category (SC/ST/BC Minority/ Others

Caste

Aadhar Card No. of the Cultivator

1

2

3

4

5

6

7

8

Particular of the land under the agreement for
crop cultivation

Whether CCRC issued

If not, reasons for not issue of CCRC

Signature of the person in Village Secretariat

Remarks

Survey No. & Sub-division No.

Extent under agreement

Name and address of land owner

9

10

11

12

13

Form-III

[Under Section 8 of the Act read with Rule 6]

Register of benefits extended to Crop Cultivator

Sl. No.

CCRC Number

Name of the Cultivator and Name of the Cultivator

Father/Husband

Address of the Cultivator

Religion

Category (SC/ST/BC Minority/ Others)

Caste

Aadhar Card No. of the Cultivator

1

2

3

4

5

6

7

8

Particulars of Crop Loan Sanctioned

Particulars of Crop Insurance Sanctioned

Particulars of Input Subsidy Sanctioned

Particulars of Crop damage Sanctioned

Rythu Bahrosa Sanctioned

Particulars of other benefits Sanctioned

Remarks

9

10

11

12

13

14

15

Signature of the Person in Village Secretariat

Form-IV(A)

[See Section 10 of the Act read with Rule 6 (1)]

(For Cultivator)

Appeal filed before the Tahsilder. Mandal

I _____ S/o W/o. _____ Aged about _____ R/o _____

Village _____, Mandal of _____ District, am the Cultivator of land of an extent

of Ac. _____ cents in Sy. No. _____ situated in _____ Village

_____ Mandal, of which the Land Owner is Sri _____ S/o W/o _____, .

That.I applied for Crop Cultivator Rights Card; but the same was not granted to me/cancelled without valid reason or excuse for such refusal or rejection.

Therefore, I request the Authority to reconsider the said issue and direct the village secretariat to grant Crop Cultivator Rights Card modifying the earlier decision.

I enclose the order of Designated Revenue Officer together with the evidence available.

Signature Name of Appellant and Address

Form - IV(B)

[See Section 10 of the Act read with Rule 6 (1)]

(For Land Owner)

Appeal filed before the Tahsilder. Mandal

I _____ S/o W/o. _____ Aged about _____ R/o _____

_____ Village, _____ Mandal of _____ District, am the

Land owner of an extent of Ac. _____ cents in Sy.No. _____ situated in

_____ Village _____ Mandal, of which Sri _____ S/o _____

W/o _____ claims to be the Cultivator. That, Crop Cultivator Rights Card; was granted in his favour without my consent.

Therefore, I request the Authority to reconsider the said issue and direct the village secretariat to cancel the Crop Cultivator Rights Card with respect to my land.

I enclose the order of Designated Revenue Officer together with the evidence available.

Signature Name of Appellant and Address

Date:

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